information we receive? And therefore, that in this case, the mass media has played a pivotal role in determining the final court verdict? If so, has it been accurate and truthful?

Now, five years later, when disturbing questions are being raised about the Parliament attack, is the Special Cell, once again, cleverly exploiting the frantic hunt for 'breaking news'? Suddenly spurious 'exposés' are finding their way onto prime-time TV. Unfortunately, some of India's best, most responsible news channels have been caught up in this game in which carelessness and incomprehension is as deadly as malice. (A few weeks ago we had a fiasco on CNN-IBN.)

Last week (16 December), on a ninety-minute prime- time show, NDTV showcased an 'exclusive' video of Mohammad Afzal's 'confession' made in police custody, in the days immediately following his arrest. At no point was it clarified that the 'confession' was five years old.[16]

Much has been said about the authenticity, reliability and legality of confessions taken in police custody, as well as the circumstances under which this particular 'confession' was extracted. Because of the very real danger that custodial torture will replace real investigation, the Indian Penal Code does not admit confessions made in police custody as legal evidence in a criminal trial. POTA was considered an outrage on civil rights and was eventually withdrawn primarily because it made confessions obtained in police custody admissible as legal evidence. In fact, in the case of Afzal's 'confession', the Supreme Court said the Special Cell had violated even the tenuous safeguards provided under POTA, and set it aside as being illegal and unreliable. Even before this, the High Court had already reprimanded the Special Cell sharply for forcing Afzal to incriminate himself publicly in a 'media confession'.[17]

So what made NDTV showcase this thoroughly discredited old 'confession' all over again? Why now? How did the Special Cell video find its way into their hands? Does it have something to do with the fact that Afzal's clemency petition is pending with the president of India and a curative petition asking for a retrial is pending in the Supreme Court? In her column in the *Hindustan Times*, Barkha Dutt, Managing Editor of NDTV, said the channel spent many hours 'debating what the fairest way' was to show this video.[18] Clearly it was a serious decision and demands to be discussed seriously.

At the start of the show, for several minutes the image of Afzal 'confessing' was inset in a text that said 'Afzal ne court mein gunah qabool kiya tha'